

1602
May 12

p. 991

Time of the
offence
uncertain,
and there-
fore par-
doned

Felony if he
depart when
he has taken
press-money

A good thing
to read the
Statutes at
large and
not the
Abridg-
ments
Departure
when pressed
is punish-
able with
imprison-
ment and
death

Time of this
uncertain,
and there-
fore par-
doned also

Taking
money to
discharge
pressed
soldiers,
a great
offence.

Mason on suspicion that he was guilty of the death of one who [had been] eight months buried. After [which time, Sir Thomas] procured the Coroner to raise him, and by a jury of his tenants to inquire concerning his death; and he spoke to the Coroner and the Jurors for the favour that they would not acquit so evil a man, so that as lord of the Manor, he should have chattels of felons. And he bound [Mason] over at three Assizes, when he was discharged by proclamation; and then he was pressed, through the information of the said Sir Thomas, and sent after the Captain to Bathe for service in Ireland. And he returned without his Captain's warrant, and was then committed by the said Sir Thomas: but the time of this offence was uncertain, and so was pardoned by 35 Elizabeth.

Whereupon good matter was resolved by all the Judges, the Attorney and the Lord Keeper, that if a man take money as 'presse-monie,' and be in charge of his Captain, and then depart without warrant, it is felony by the statute of 3 Henry VII., which is not repealed but continues in force. (And therefore the Attorney advises students of the law to read the Statutes at large, and not to trust to the Abridgements.) And it is good discretion in any Justice of the Peace to commit such a person, and for the like offence divers [persons] were executed at Mildende, and now it is necessary to publish this.

The third offence. One ¹ Neste, was seised of land in tail, having issue two sons; both the sons were accused of murder; the said Sir Thomas took a bond from the younger son of £200 for the payment of £100 after his father's death, to condemn his elder brother of the said murder, and another bond of £200 for the payment of £100 after his father's death, to discharge himself of robbery and felony.

The fourth offence. In taking money to discharge pressed soldiers; but this was against Garlike and other two servants of the said Sir Thomas, and not against Sir Thomas himself.

¹ Blank in MS.